



United States
Attorney's Office
Middle District of Pennsylvania



Harrisburg Woman Sentenced To 41 Months in Prison for Health Care Fraud And Bank Fraud Charges

Monday, March 3, 2025

For Immediate Release

U.S. Attorney's Office, Middle District of
Pennsylvania

HARRISBURG – The United States Attorney's Office for the Middle District of Pennsylvania announced that Ester N. Mbaya, age 43, of Harrisburg, Pennsylvania, was sentenced on Thursday, February 27, 2025, to 41 months in prison by United States District Court Judge Julia K. Munley, on charges of health care fraud and bank fraud. Judge Munley also ordered Mbaya to pay back \$3,349,550 in restitution to the parties she defrauded.

According to Acting United States Attorney John C. Gurganus, Mbaya was president of Cool Waters, LLC, a home health care agency. Mbaya submitted fraudulent Medicaid claims seeking compensation for services that were not provided or were otherwise inflated. Mbaya submitted these fraudulent claims from January 2018 to June 2020, and obtained in excess of \$1 million as a result of the fraud.

Mbaya also submitted falsified records to four financial institutions to obtain loans and lines of credit. The falsified records included altered bank statements which made it appear she had more money on deposit than she did. She also submitted falsified pay checks to obtain loans.

"This exhaustive investigation uncovered nearly three million dollars in Medicaid funds that should have been used to help Pennsylvanians in need of care, but instead were taken by the defendant who deliberately defrauded the system," Pennsylvania Attorney General Dave Sunday said. "I commend the dedication of our team which uncovered this fraud, and thank our federal partners for collaboration which led to a successful prosecution."

"This sentencing sends a clear message that home health care providers are required to follow the law and submit only valid claims to Medicaid for reimbursement," said Special Agent in Charge Maureen Dixon of the Department of Health and Human Services Office of the Inspector General (HHS-OIG).

“HHS-OIG and our law enforcement partners will continue to work together to investigate fraudulent claims made to federally funded health care programs.”

The case was investigated by the U.S. Office of Inspector General for the U.S. Department of Health and Human Services and the Pennsylvania Office of Attorney General. Special Assistant U.S. Attorney Christopher Sherwood and Assistant U.S. Attorney Michael Consiglio prosecuted the case.

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